

Writ Petition No.43328 of 2025

Suleman Shahbaz Sharif

Additional Sessions Judge, etc.

31.07.2025 Mr. Javed Arshad Bhatti, Advocate for the petitioner.
 Mr. Waqas Umar, AAG, with Rana Qadir S.I.
 M/s Syed Farhaz Haider and Muhammad Zohaib
 Hashmi, Advocates for respondent No.2.

Through instant petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has prayed for setting aside the order dated 10.07.2025 passed by the learned Additional Sessions Judge, Lahore in his capacity as Ex-Officio Justice of Peace, whereby learned Ex-Officio Justice of Peace, while accepting the petition filed by respondent No.2 under section 22-A, 22-B of Cr.P.C. directed the S.H.O, to record the statement of respondent No.2 under section 154 Cr.P.C. and shall proceed with the matter strictly by law.

2. At the very outset, learned counsel for respondent No.2 has submitted that a compromise between the parties has been effected and the petitioner undertakes to liquidate his liability towards respondent No.2. When confronted, learned counsel for the petitioner has submitted that no compromise has been effected between the parties. However, a copy of the agreement reached between the parties has been gone through, which reveals that the first party was Tariq Meo, son of Haji Mian Feroze Din, and Muhammad Akhtar alias Billa, s/o Sheikh Muhammad Tufail, whereas the second party was Syed Qateel Anwaar-ul-Hassan, son of Syed Anwaar-ul-Hassan. The document is silent on whether the petitioner authorized

the first party to enter into any deal with respondent No.2. Learned counsel for respondent No.2 also admitted that this fact has not been mentioned in the document. Learned counsel for the petitioner submits that the case may be decided on the merits, as per instructions, no compromise took place between the petitioner and respondent No. 2.

3. Heard. Record perused.

4. On perusal of the application for registration of case (undated), it reveals that respondent No.2 supplied 17 laptops valuing Rs.11,66,000/- to the petitioner's company, against which two cheques i.e. (1) No.00017377 dated 12.05.2025 amounting to Rs.2,48,000/- and (2) No.00017378 dated 12.05.2025 amounting to Rs.3,90,000/-, total valuing Rs.6,88,000/- of Habib Bank Ltd. Branch New Muslim Town, Ayoubia Market, Lahore, was handed over to respondent No.2, which was submitted with the Faisal Bank on 22.05.2025, and the same was dishonoured due to "stop payment instructions." Respondent No.2 has not been mentioned in the application for registration of the case, when and who received the 17 laptops on behalf of the petitioner's company. Learned counsel for the respondent No.2 admitted that the respondent No.2 sent a legal notice dated 03.06.2025 to the petitioner's company, to which the petitioner replied on June 12, 2025. In response to legal notice, the petitioner's company denied the liability and mentioned that an employee of the company, who was employed in IT department, was discovered to have committed fraud including the creation of false and unauthorized purchase orders, unauthorized receipt, diversion of goods, theft, misuse of Company cheques and the cheques issued to respondent No.2 were fraudulently used by said Muhammad Raza by forging the signatures of the Company's authorized signatories and the company did not

know the issuance or presentation of these instruments until the fraud was uncovered. Upon discovery, the Company immediately notified its bank and requested stoppage of the relevant cheques and also got registered case FIR No.876/2025 dated 23.05.2025 under sections 381, 420, 468, 411, 201 PPC at P.S. Quaid-i-Azam Industrial Area, District Lahore.

It is an admitted fact that the application for registration of the case was submitted with respondent No.3 on 18.06.2025, much before submitting of application for registration of case, the petitioner, through reply dated 03.06.2025, denied the liability towards respondent No.2 and also informed him that legal action has been taken against the employee, who issued fake cheques. It is also an admitted fact that against the said employee Muhammad Raza, one Khawaja Asad and Qudrat Mehmood also got registered criminal cases, i.e., 965/2025 and 977/2025, respectively, on 04.06.2025 and 06.06.2025, for issuing the fake purchase orders. These all facts were in the knowledge of respondent No.2. However, by concealing the real facts, respondent No.2 moved an application for registration of case and thereafter filed a petition under section 22-A, 22-B of Cr.P.C. before the learned Sessions Judge, Lahore on 25.06.2025, which was entrusted to learned Additional Sessions Judge with the powers of Ex-Officio Justice of Peace, Lahore who requisitioned the report from respondent No.1. It is also admitted fact that the petitioner was not made party to the proceedings before the learned Ex-Officio Justice of Peace nor his address was given in the application for registration of case by respondent No.2. The Ex-Officio Justice of Peace passed order dated 10.07.2025 without receiving report, directed the

S.H.O to record statement of respondent No.2 under section 154 of Cr.P.C. Learned counsel for the respondent No.2 admitted all above said documents and the proceedings taken between the petitioner's company and respondent No.2. Learned counsel also admitted that the specific date when the 17 laptops were handed over to the petitioner's company has not been mentioned nor the name of the person was mentioned, who received the laptops. Even respondent No.2 has not mentioned who handed him the alleged cheques, which were subsequently dishonored. Section 22-A, 22-B Cr.P.C empowered the justice of the Peace to issue directions for the registration of the case, but this power was never supposed to be exercised mechanically. The Courts were never supposed to overlook other aspects of the case and to pass an order to register the case on the complainant's false application. Respondent No. 2, if he wishes, can join the proceedings in the FIR mentioned above and record his version. The matter can be investigated keeping all the facts in view of the judgment of the Supreme Court of Pakistan titled, "Mst. SUGHRAN BIBI versus The STATE" reported P L D 2018 Supreme Court 595 that:-

Para No. 27 (i) According to section 154, Cr.P.C., an FIR is only the first information to the local police about the commission of a cognizable offence. For instance, an information received from any source that a murder has been committed in such and such village is to be a valid and sufficient basis for registration of an FIR in that regard.

(ii) If the information received by the local police about commission of a cognizable offence also contains a version as to how the relevant offence was committed, by whom it was

committed and in which background it was committed then that version of the incident is only the version of the informant and nothing more and such version is not to be unreservedly accepted by the investigating officer as the truth or the whole truth.

5. For the preceding reasons, the petition in hand stands **accepted** and the impugned order dated 10.07.2025 passed by learned Ex-Officio Justice of Peace/Additional Sessions Judge Lahore is **set aside**.

(Aalia Neelum)
Chief Justice

Approved for reporting

Chief Justice

*This order has been
dictated, pronounced,
prepared, and signed on
31.07.2025*

*Ikram**